

Buddavva W/O Shivappa Talawar vs Shantappa S/O Bhimappa Talawar on 5 June, 2024

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NC: 2024:KHC-K:3623

RSA No. 200030 of 2020

IN THE HIGH COURT OF KARNATAKA
KALABURAGI BENCH

DATED THIS THE 5TH DAY OF JUNE, 2024

BEFORE

THE HON'BLE Mrs JUSTICE K S HEMALEKHA

REGULAR SECOND APPEAL NO.200030 OF 2020

(PAR & SEP,POSS)

BETWEEN:

BUDDAVVA W/O SHIVAPPA TALAWAR
AGE: 52 YEARS OCC: H. H. WORK
R/O. PADAGANUR, TQ: SINDAGI-586128.

...APPELLANT

(BY SRI HEMA L. KULAKARNI, ADVOCATE)

AND:

SHANTAPPA S/O BHIMAPPA TALAWAR
AGE: 52 YEARS, OCC: AGRICULTURE
R/O. NAD B. K., TQ: INDI-586209.

...RESPONDENT

(BY SRIJAYKUMAR A.K., ADVOCATE)

Digitally signed
by SWETA
KULKARNI
Location: High
Court of
Karnataka

THIS RSA IS FILED U/S. 100 R/W ORDER 42 RULE 1 OF
CPC PRAYING TO ALLOW THIS APPEAL BY SETTING ASIDE THE
JUDGMENT & DECREE PASSED BY THE SENIOR CIVIL JUDGE
AND JMFC SINDAGI, IN R.A. NO.8/2018, DATED:25.10.2019,
BY ALLOWING THE APPEAL IN PART AND MODIFYING THE
SHARE OF THE PLAINTIFF FROM 1/4TH TO 1/9TH BY MODIFYING
THE JUDGMENT AND DECREE PASSED BY ADDL. CIVIL JUDGE
AND JMFC SINDAGI IN O.S. NO.503/2013, DATED 24.01.2018
AND ETC.

THIS APPEAL, COMING ON FOR ADMISSION, THIS DAY,
THE COURT DELIVERED THE FOLLOWING:

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JUDGMENT

The present regular second appeal by the plaintiff assailing the concurrent findings of the Courts below, whereby, the First Appellate Court allowed the appeal of the plaintiff in part by modifying judgment and decree passed by the Trial Court in O.S No.503/2013.

2. Parties herein are referred to as per the ranking before the Trial Court for the sake of convenience.

3. Suit instituted for partition and separate possession by Buddavva seeking $\frac{1}{2}$ share in suit property bearing Sy.No.214/2 measuring 6 acres (herein after referred to as "suit property" for short) contending that plaintiff and defendant are children of deceased Bheemappa, that suit property is the ancestral property and the plaintiff is entitled for $\frac{1}{2}$ share.

4. Pursuant to the suit summons issued by the Trial Court the defendant appeared and filed his written statement inter alia contended that suit is not maintainable NC: 2024:KHC-K:3623 and is liable to be dismissed. Defendant contended that he is born to Gangawwa, and Bheemappa the relationship of Sabawwa with Bheemappa was disputed contending that Sabawwa was not married to Bheemappa and that Bheemappa's wife is Gangawwa, who is still alive and denied the status of the plaintiff that she is the daughter of the Bheemappa born to Sabawwa.

5. The Trial Court on the basis of the pleadings framed the following issues:

1. "zÁÁ D¹ŪAiÄÄ ªÁç ªÄvÄÄŪ ¥ÆwªÁçAiÄÄ »AzÄÄ C« ¨sÀPÀŪ PÄÄIÄA§zÄ , Á ª Ä ÄÆ » P Ä ª Ä i Á ° P Ä v Ä é z Ä ° è g Ä Ä ª Ä D¹ Ū J A z Ä Ä ª Á ç A i Ä Ä gÄÄdÄªvÄÄ¥Är, ÄÄªÄ¼É?

2. ªÁçAiÄÄ, vÄ£Äß vÄAzÉ °ÁUÄÆ ¥ÆwªÁçAiÄÄ vÄAzÉAiÄiÁzÄ ©üÄªÄÄ¥Ä vÄ¼ÄªÁgÄ EvÄ£Ä ªÄUÄ¼Ä JAzÄÄ gÄÄdÄªvÄÄ¥Är, ÄÄªÄ¼É?

3. ªÁçAiÄÄ vÄ£ÄÄ PÉÄ½gÄªAvÉ ¥Äj°ÁgÄ ¥ÄqÉAiÄÄ®Ä C°Äð¼É?

AiÄiÁª rQæ AiÄiÁª DzÉÄ±Ä?"

6. The Trial Court partially decreed the suit and awarded $\frac{1}{4}$ th share to each. Aggrieved both the defendant and the plaintiff preferred R.A No.3/2018 and R.A No.8/2018 before the First Appellate Court. The First appellate Court while re-appreciating the entire oral and documentary evidence modified the judgment and decree NC: 2024:KHC-K:3623 of the Trial Court by awarding $\frac{1}{9}$ th

share to the plaintiff and allowed the appeal in part preferred by the plaintiff and dismissed the appeal preferred by the defendant. Aggrieved by the modification and awarding of 1/9th share the plaintiff is before this Court.

7. Heard Smt Hema L Kulkarni, learned counsel for the appellant and Sri Ajaykumar A K., learned counsel for the respondent.

8. At the cost of repetition plaintiff contended that plaintiff and defendant are children of Bheemappa. Defendant raised a contention that Bheemappa had married Gangawwa and that Bheemappa marriage with Sabawwa and plaintiff born to Bheemappa and Sabawwa through matrimonial relationship was disputed. The defendant specifically contended that during the lifetime of Gangawwa, marriage of Sabawwa, if any, was not valid. Plaintiff contended that Sabawwa got married to Bheemappa after the death of Gangawwa.

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9. The burden was on the plaintiff to prove that Gangawwa had died and after the demise of Gangawwa, Bheemappa got married to Sabawwa.

10. No material was forthcoming as to whether the Gangawwa has died and after her death Sabawwa married Bheemappa. In the absence of any sufficient material to support the presumption that Gangawwa has died, the plaintiff though stated about death of Gangawwa and Sabawwa having married Bheemappa, the plaintiff having failed to establish about the death of Gangawwa the Courts below held that Sabawwa was not entitled to any share, assuming that she was married to Bheemappa during the life time of Gangawwa, the plaintiff being born to Sabawwa assuming that she is a second wife, the Trial Court awarded equal partition. The First appellate Court while awarding shares in the suit property held that notional partition has to be awarded. The Apex Court in the case *Revanasiddappa and another vs. Mallikarjun* NC: 2024:KHC-K:3623 and others¹(*Revanasiddappa*) has given deliberate consideration to Section 16 of the Hindu Marriage Act, 1955 and has arrived at the following conclusion at paragraph No.74 which reads as under:

"74. We now formulate our conclusions in the following terms:

(i) In terms of sub-section (1) of Section 16, a child of a marriage which is null and void under Section 11 is statutorily conferred with legitimacy irrespective of whether (i) such a child is born before or after the commencement of Amending Act, 1976; (ii) a decree of nullity is granted in respect of that marriage under the Act and the marriage is held to be void otherwise than on a petition under the enactment;

(ii) In terms of sub-section (2) of Section 16 where a voidable marriage has been annulled by a decree of nullity under Section 12, a child begotten or conceived' before the decree has been made, is deemed to be their legitimate child notwithstanding the decree, if the child would have been legitimate to the parties to the marriage if a decree of dissolution had been passed instead of a decree of nullity;

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(iii) While conferring legitimacy in terms of sub-section (1) on a child born from a void marriage and under sub-section (2) to a child born from a voidable marriage which has been annulled, the legislature has stipulated in subsection (3) of Section 16 that such a child will have rights to or in the property of the parents and not in the property of any other person;

(iv) While construing the provisions of Section 3(1)(1) of the HSA 1956 including the proviso, the legitimacy which is conferred by Section 16 of the HMA 1955 on a child born from a void or, as the case may be, voidable marriage has to be read into the provisions of the HSA 1956. In other words, a child who is legitimate under sub-section (1) or sub-section (2) of Section 16 of the HMA I would, for the purposes of Section 3(1)(j) of the HSA 1956, fall within the ambit of the explanation 'related by legitimate kinship' and cannot be regarded as an 'illegitimate child' for the purposes of the proviso;

(v) Section 6 of the HSA 1956 continues to recognize the institution of a joint Hindu family governed by the Mitakshara law and the concepts of a coparcener, the acquisition of an interest as a coparcener by birth and rights in coparcenary property. By the substitution of Section 6, equal NC: 2024:KHC-K:3623 rights have been granted to daughters, in the same manner as sons as indicated by sub- section (1) of Section 6;

(vi) Section 6 of the HSA 1956 provides for the devolution of interest in coparcenary property. Prior to the substitution of Section 6 with effect from 9 September 2005 by the Amending Act of 2005, Section 6 stipulated the devolution of interest in a Mitakshara coparcenary property of a male Hindu by survivorship on the surviving members of the coparcenary. The exception to devolution by survivorship was where the deceased had left surviving a female relative specified in Class I of the Schedule or a male relative in Class I claiming through a female relative, in which event the interest of the deceased in a Mitakshara coparcenary property would devolve by testamentary or intestate succession and not by survivorship. In terms of sub-section (3) of Section 6 as amended, on a Hindu dying after the commencement of the Amending Act of 2005 his interest in the property of a Joint Hindu family governed by the Mitakshara law will devolve by testamentary or intestate succession, as the case may be, under the enactment and not by survivorship. As a consequence of the substitution of Section 6, the rule of devolution by testamentary or intestate succession of the interest of a deceased NC: 2024:KHC-K:3623 Hindu in the property of a Joint Hindu family governed by Mitakshara law has been made the norm;

(vii) Section 8 of the HSA 1956 provides general rules of succession for the devolution of the property of a male Hindu dying intestate. Section 10 provides for the distribution of the property among heirs of Class I of the Schedule. Section 15 stipulates the general rules of succession in the case of female Hindus dying intestate. Section 16 provides for the order of succession and the distribution among heirs of a female Hindu;

(viii) While providing for the devolution of the interest of a Hindu in the property of a Joint Hindu family governed by Mitakshara law, dying after the commencement of the Amending Act of 2005 by testamentary or intestate succession, Section 6 (3) lays down a legal fiction namely that the

coparcenary property shall be deemed to have been divided as if a partition had taken place'. According to the Explanation, the interest of a Hindu Mitakshara coparcener is deemed to be the share in the property that would have been allotted to him if a partition of the property has taken place immediately before his death irrespective of whether or not he is entitled to claim partition;

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(ix) For the purpose of ascertaining the interest of a deceased Hindu Mitakshara coparcener, the law mandates the assumption of a state of affairs immediately prior to the death of the coparcener namely, a partition of the coparcenary property between the deceased and other members of the coparcenary. Once the share of the deceased in property that would have been allotted to him if a partition had taken place immediately before his death is ascertained, his heirs including the children who have been conferred with legitimacy under Section 16 of the HMA 1955, will be entitled to their share in the property which would have been allotted to the deceased upon the notional partition, if it had taken place; and

(x) The provisions of the HSA 1956 have to be harmonized with the mandate in Section 16(3) of the HMA 1955 which indicates that a child who is conferred with legitimacy under sub-sections (1) and (2) will not be entitled to rights in or to the property of any person other than the parents. The property of the parent, where the parent had an interest in the property of a Joint Hindu family governed under the Mitakshara law has to be ascertained in terms of the Explanation to sub-section (3), as interpreted above."

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11. The reference to the three judge bench was whether a child born to parents whose marriage is null and void and annulled by a decree of nullity is declared to be a legitimate, if the child would have been legitimate, if the marriage had been valid and the "property" of the parent includes the share in the coparcenary property. The Apex Court in Revannasiddappa's case dealt with the complex issue of legitimacy and the property rights of the children born from void or voidable marriages. The Apex Court considered the provisions of Section 16 of the Hindu Marriage Act, 1955 and Section 6 of the Hindu Succession Act, 1956, as well as the amendments. The Apex Court emphasized that the child born to their parents is null and void and annulled by a decree of nullity to be declared legitimate if the child would have been legitimate if the marriage had been valid. The Apex Court considered the various decisions where differing interpretation of Section 16 Sub-Clause (3) of the Hindu Marriage Act, 1955, the Apex Court ultimately ruled that the children conferred

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NC: 2024:KHC-K:3623 with the legitimacy under Sections 16 (1) or 16 (2) of the Hindu Marriage Act, 1955 have similar right to legitimate children and can claim a share in the property of their parents and the "property" of the parents includes share in the coparcenary property, and the provision confers all the connotations of legitimacy on the children.

12. In light of the law declared by the Apex Court conferring with legitimacy under Section 16 of the Hindu Marriage Act, 1955, the children will be entitled to their share in the property which would have been allotted to the deceased upon the notional partition, if it had taken place and in light of the said proposition of law laid down by the Apex Court, the plaintiff herein is to be equated with that of the legitimate children and if a notional partition has to be equated, then as on the date of death of Bheemappa, in which Bheemappa, Shantappa, and Gangawwa would be entitle for 1/3rd share each and thereafter in the share of Bheemappa the plaintiff-

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NC: 2024:KHC-K:3623 Buddavva would be entitled for 1/9th share in the suit property.

13. The First appellate Court has rightly quantified the share of the plaintiff and arrived at a conclusion that plaintiff is entitled for 1/9th share in the suit property, there arises no substantial question of law to be dealt with in the present Second appeal. For the foregoing reasons, this Court pass the following:

ORDER I. The Regular Second Appeal is hereby dismissed.

II. The judgment and decree of the First Appellate Court stands confirmed.

Sd/-

JUDGE AT